



Procedure No: EXP202413132 (AI/00035/2025)

RESOLUTION OF FILE OF PROCEEDINGS

From the actions taken by the Spanish Agency for the Protection of Data and based on the following:
FACTS

FIRST: On 26/08/24, Mr. A.A.A. (the complainant) submitted a complaint to the Spanish Agency for the Protection of Data.

The complaint is directed against the entity, CASIKA INTERIOR DESIGN, S.L., with NIF: B06808729 (the respondent), for the alleged violation of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

The complainant states in their complaint the following:

"From the entity's website, I purchased a piece of furniture and since that moment I have been receiving spam emails. In those same emails, there is an option at the bottom to unsubscribe from receiving such emails. I have clicked on it several times, redirecting me to a page that states everything is correct. Nevertheless, they continue to send spam continuously."

Along with the complaint, the following documentation is attached:

- Dated 25/08/24, a copy of the email sent from the address hola@casika.es to the email address ***EMAIL.1, with the subject: "Don't miss out!  Only a few hours left for your discount to expire" and containing the following message: "We know you are a decoration lover and you love to have your home stylish and up to date, but we haven't seen you around Casika for a while! We guarantee that if you take a look at our latest news..."

At the bottom of the email, there is the following message:

"You receive this email because you are part of the Casika family or because you provided your email address at some event held, and we believe that the information provided may be of interest to you.

<> | <> CASIKA.ES."

- Undated, a screenshot of the confirmation of receipt with the text: "You have been successfully unsubscribed."

SECOND: On 27/09/24, in accordance with the provisions of Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD), this Agency forwarded the complaint to the respondent for analysis and to inform within one month about what was stated in the complaint.

The transfer was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), via electronic notification, with the following result: "Date of access to the content of the notification: 07/10/2024 08:36" but there is no record that this Agency has received any response to said transfer.

THIRD: On 26/11/24, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the complainant was admitted for processing.

FOURTH: There is no economic information about the company in question.

LEGAL GROUNDS

I

Competence.

In accordance with the provisions of Article 43.1 of the LSSI and the provisions of Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Presidency of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

The fourth additional provision "Procedure in relation to the powers attributed to the Spanish Agency for the Protection of Data by other laws" establishes that: "The provisions in Title VIII and its development rules shall apply to the procedures that the Spanish Agency for the Protection of Data

must process in the exercise of the powers attributed to it by other laws.”

II

Summary of the events that occurred

In this case, the complainant states that after making a purchase through the website of the respondent, they began to receive unwanted emails (spam), but despite having used the unsubscribe option included in those emails several times, the messages continued to arrive repeatedly. To corroborate this complaint, a copy of an advertising email received, dated 25/08/24, from the address hola@casika.es and a screenshot of the confirmation of receipt of unsubscription (undated), with the message: “You have been successfully unsubscribed” is presented.

Indeed, Article 21.2 of the LSSI establishes that the service provider must offer recipients the possibility to oppose the processing of their data for promotional purposes through a simple procedure. In the case of the...

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electronic communications, the regulations require the inclusion of a mechanism or a valid address to exercise this right.

In the present case, from the documentation provided by the complainant, there is no clear temporal evidence that allows us to determine that the email received on 25/08/24 was after the date on which the cancellation was processed. Since the cancellation acknowledgment does not contain a verifiable date, it is not possible to conclusively prove that the entity failed to comply with the obligation to exclude the recipient after the request.

Therefore, as there is insufficient evidence to substantiate the violation of Article 21.2 of the LSSI, and in light of the lack of certainty regarding the chronological sequence of events, the case file should be closed.

Thus, in accordance with the above,

IT IS AGREED:

FIRST: TO PROCEED WITH THE FILING of the present proceedings.

SECOND: TO NOTIFY this resolution to the complainant.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 of the LOPDGDD, due to the vacancy of the Presidency and Deputy Presidency.

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